

STATE OF NEW YORK

8160--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 2, 2025

Introduced by M. of A. EPSTEIN, ROSENTHAL, COLTON, SHIMSKY, SEAWRIGHT, REYES, LEVENBERG -- read once and referred to the Committee on Governmental Operations -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law; in relation to directing state agencies to adopt a waste diversion plan

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The environmental conservation law is amended by adding a new section 27-0111 to read as follows:

§ 27-0111. State entities waste reduction and diversion.

1. Definitions. For purposes of this section:

(a) "Affected entities" shall mean any agency or department over which the governor has executive authority, including all offices and divisions thereof, as well as all public authorities for which the governor appoints the chair, the chief executive, or the majority of board members, including all offices and divisions thereof, except for the port authority of New York and New Jersey. This shall include the state university of New York and the city university of New York.

(b) "Council" shall mean the GreenNY Council, created pursuant to executive order twenty-two on September twentieth, two thousand twenty-two.

2. (a) The council shall be comprised of the commissioner of environmental conservation; the director of the division of the budget; the commissioner of general services; the commissioner of health; the commissioner of economic development; the commissioner of transportation; the commissioner of parks, recreation, and historic preservation; the president of the environmental facilities corporation; the president of the New York state energy research and development authority; the president of the New York power authority; the president of the dormito-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 ry authority of the state of New York; and the chief executive officer
2 of the metropolitan transportation authority.

3 (b) Members of the council may designate a staff member, and an alter-
4 nate, to represent them and participate on the council on their behalf.

5 (c) The council shall be led and co-chaired by the commissioner of
6 general services, the commissioner of environmental conservation, the
7 director of the division of the budget, the president of the New York
8 state energy research and development authority, and the president of
9 the New York power authority, or their designees. The day-to-day work of
10 the council shall be performed by executive and program staff of these
11 leadership agencies and authorities, in consultation with any other
12 agency or authority staff that participate in council work.

13 3. (a) All affected entities, in consultation with the department and
14 the council, shall create a waste diversion plan and file such plan with
15 the council, that outlines how they will achieve a decrease in waste
16 disposal of ten percent every five years from a baseline of fiscal year
17 two thousand eighteen-two thousand nineteen, until reaching a goal of an
18 overall seventy-five percent decrease.

19 (b) Waste data reported for these goals shall be broken out into the
20 following categories:

21 (i) recycled materials;
22 (ii) compostable materials and other organics;
23 (iii) material sent to landfills, including construction and demoli-
24 tion waste; and
25 (iv) special waste, including hazardous waste.

26 (c) The waste diversion plan shall incorporate at least the following
27 elements:

28 (i) a schedule for conducting routine waste audits of facilities and
29 how the findings from the waste audit will be utilized in advancing
30 waste reduction;

31 (ii) a plan for diverting organic waste from landfills to meet the
32 diversion goals;

33 (iii) identifying all instances where single-use plastics are used and
34 creating a plan to eliminate their use in all circumstances where doing
35 so will not endanger employee or public health and safety; and

36 (iv) consideration of whether the affected entity should be transi-
37 tioning to dual-stream recycling that source separates recyclable items
38 into subcategories of mixed paper and commingled containers (plastic,
39 glass, and metal), at all facilities where it is practicable and where
40 dual-stream material recovery facilities are available, cost-effective
41 and efficient.

42 (d) The council, in consultation with the department, shall reassess
43 the waste diversion goals of this subdivision at least every five years,
44 and if the goals are updated by the council, the council shall require
45 updated waste diversion plans to be submitted by affected entities.

46 4. All waste diversion plans prepared pursuant to this section shall
47 be posted on the department's website.

48 § 2. This act shall take effect immediately.